

Extradition Act, 2014

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 10

Extradition Act, 2070

Certification and Publication Date

2072.12.12

Act No. 11 of the year 2070

Preamble: Whereas, it is desirable to amend and consolidate the prevailing law relating to extradition and make it time-bound in connection with conducting proceedings relating to extradition in accordance with law of a fugitive accused or offender who has committed an extraditable offense;

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament pursuant to Article 83 of the Interim Constitution of Nepal, 2063, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Extradition Act, 2070".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Offense" means an offense pursuant to Section 4.

(b) "Fugitive accused or offender" means an accused or offender who is accused of any offense in a foreign State or sentenced for any offense and resides or stays in Nepal, or who is accused of any offense in Nepal or sentenced for any offense and has gone to reside or stay in a foreign State.

(c) "Ministry" means the Ministry of Home Affairs, Government of Nepal.

(d) "Requesting State" means a foreign State which makes a request to the Government of Nepal for the extradition of a fugitive accused or offender.

(e) "Extradition" means the act of handing over a fugitive accused or offender to the requesting State upon the request of that State, and the term shall also mean the act of handing over a fugitive accused or offender by the relevant foreign State to Nepal upon the request of Nepal.

(f) "Extradition treaty" means a treaty concluded by Nepal with any foreign State for the extradition of a fugitive accused or offender, and the term shall also mean an understanding made for the purpose of extradition. 3. Circumstances in which Extradition may be Made: If any foreign State requests the Government of Nepal for the extradition of a fugitive accused or offender, the Government of Nepal may, subject to this Act, extradite such accused or offender to that State in the following circumstances:-

(a) There is an extradition treaty;

(b) There is an extraditable offense pursuant to Section 4. 4.

Extraditable Offenses: The following offenses shall be considered extraditable offenses:- (a) An offense punishable with imprisonment for at least three years under the law of Nepal; (b) An offense punishable with

imprisonment for at least three years under the law of the requesting State; (c) An offense relating to tax, revenue, banking transactions or any other similar type of economic or financial offense, even if punishable with a lesser punishment than that referred to in clauses (a) and (b); (d) An offense of attempting, abetting, conspiring to commit, or inciting another to commit an offense under clauses (a), (b) or (c). 5. Circumstances in which Extradition shall be refused: Notwithstanding anything contained in Section 3, any fugitive accused or offender shall not be extradited in the following circumstances:- (a) If the offense committed by the fugitive accused or offender is of a political nature; (b) If proceedings are instituted or likely to be instituted in respect of any offense on the basis of caste, ethnicity, race, religion, nationality or political ideology; (c) If the trial is conducted or is likely to be conducted and punishment imposed with prejudice based on caste, ethnicity, race, religion, nationality or political ideology; (d) If the punishment is the death penalty or the accusation is such that the death penalty may be imposed; (e) If he or she is a citizen of Nepal; (f) If the offense is punishable under military law of the requesting State; (g) If there is a substantial possibility that the fugitive accused or offender will be subjected to physical or mental torture in the requesting State; (h) If a court of Nepal has already rendered a decision in the same offense for which extradition is requested; (i) If proceedings are pending in any court of Nepal against the fugitive accused or offender on any criminal offense, or if he or she has been convicted and has not yet served the sentence; (j) If the competent authority of the requesting State has already decided not to institute proceedings or to grant remission of the sentence; (k) If the period of limitation for instituting proceedings under the law of the requesting State has expired; (l) If the person is entitled to immunity from punishment under the law of the requesting State. 6.

Offenses not deemed to be of a Political Nature: For the purpose of clause (a) of Section 5, the following offenses shall not be deemed to be offenses of a political nature:- (a) Corruption; (b) Human trafficking or transporting, or selling body parts; (c) Production, storage, transportation or trafficking of narcotic drugs; (d) Offenses relating to tax, revenue, banking transactions or any other similar type of economic or financial offense; (e) Money laundering; (f) Rape; (g) Child sexual abuse; (h) Offenses relating to unlawful damage or loss of wildlife or forest produce, or unlawful trafficking thereof; (i) Genocide-related offenses; (j) Crimes against humanity; (k) Any offense committed in an organized manner or a multinational organized crime; (l) Aircraft hijacking or offenses against the safety of civil aviation; (m) Any offense against a diplomatic mission or person entitled to diplomatic privileges; (n) An offense of attempting, inciting or conspiring to commit any of the offenses under clauses (a) to (m), or abetting or being involved in any other manner in the commission of such offense. 7. Request required for Extradition: (1) The requesting State shall make a request to the Government of Nepal for extradition of a fugitive accused or offender who is residing or staying in Nepal or who is in transit within Nepal while proceeding to a third country. (2) When making a request pursuant to sub-section (1), the requesting State shall make the request through diplomatic channels. (3) Notwithstanding anything contained in sub-section (2), if there is a likelihood that the fugitive accused or offender will abscond if not immediately arrested and taken into control, the requesting State may directly request the Ministry for the immediate arrest and taking into control of such fugitive accused or offender. (4) When making a request pursuant to sub-section (3), in the case of a fugitive accused, evidence making him or her prima facie appear as accused, and in the case of an offender, the judgment of a competent court convicting him or her shall be provided. (5) If the fugitive accused or offender is arrested on the basis of the evidence or judgment pursuant to sub-section (4), the Ministry shall, within three days, give information thereof to the requesting State. (6) If the fugitive accused or offender is arrested pursuant to sub-section (5), the requesting State shall, within seven days from the date of receipt of information of the arrest, request the Government of Nepal through diplomatic channels for extradition of such fugitive accused or offender. (7) If no request is made pursuant to sub-section (6), the Ministry shall immediately release the arrested fugitive accused or offender from

detention. 8.

Details to be Specified and Documents to be Annexed when requesting Extradition: (1) When requesting extradition pursuant to Section 7, the requesting State shall specify the following details:- (a) The physical description, nationality, national identification number and other identifying details of the fugitive accused or offender, and as far as possible information regarding his or her current place of residence; (b) The place, date and details of the offense; (c) The prevailing legal provision of the requesting State in relation to the offense, and the maximum punishment that may be or has been imposed if convicted or upon conviction. (2) When requesting extradition pursuant to Section 7, the requesting State shall annex the following documents:- (a) Evidence documents relating to the offense; (b) A warrant issued by the competent authority for the arrest of such accused or offender; (c) A copy of the judgment rendered by a competent court or other competent body in relation to the extradition of the offender; (d) A commitment not to institute proceedings in respect of any offense other than the offense specified at the time of making the request for extradition; (e) A commitment not to institute proceedings in respect of any offense punishable with a lesser sentence than the sentence that may be imposed for the offense specified at the time of making the request for extradition; (f) A commitment not to re-extradite the extradited fugitive accused or offender to any other State; (g) A commitment to obtain prior consent of the Government of Nepal if it is inevitable to extradite under clause (f).

9. Request relating to Extradition to be forwarded to Ministry: Upon receipt of a request for extradition pursuant to Section 7, the Ministry of Foreign Affairs, Government of Nepal, shall forward such request along with the details, documents and evidence received therewith to the Ministry for necessary action relating to extradition. 10.

Proceedings relating to Extradition to be initiated: (1) Upon receipt of a request pursuant to Section 9, the Ministry shall study and examine the details, documents, evidence and facts of the offense annexed with such request, and decide within fifteen days whether to initiate or not to initiate extradition proceedings. (2) If, during the study and examination pursuant to sub-section (1), the details, documents and evidence received with the request appear insufficient to initiate proceedings for extradition, the Ministry may write to the requesting State through diplomatic channels requesting the submission of additional details, documents and evidence. (3) If a decision is made to initiate extradition proceedings pursuant to sub-section (1), the Ministry shall order the concerned Chief District Officer to cause a report to be submitted to the concerned District Court through the concerned Government Attorney for the Court's permission to extradite the fugitive accused or offender. (4) When issuing an order to the concerned Chief District Officer pursuant to sub-section (3), the warrant issued by the competent authority of the requesting State for the arrest of the fugitive accused or offender shall also be sent, and such fugitive accused or offender shall be caused to be arrested. (5) If a decision is made not to initiate extradition proceedings pursuant to sub-section (1), the Ministry shall immediately inform the requesting State through diplomatic channels of the substance of such decision and whether the fugitive accused or offender has been arrested or not. 11. Arrest Warrant to be issued: Upon receipt of the warrant pursuant to sub-section (4) of Section 10, the concerned Chief District Officer shall issue an arrest warrant in accordance with prevailing law to arrest the fugitive accused or offender. 12. Fugitive Accused or Offender to be produced before Court: The fugitive accused or offender arrested on the basis of the arrest warrant issued pursuant to Section 11 shall be produced before the concerned District Court within twenty-four hours of arrest, excluding the travel time, and shall be kept in detention pursuant to the order of that Court. 13. Report to be submitted: (1) For the purpose of obtaining permission to extradite the fugitive accused or offender detained pursuant to Section 12 to the requesting State, the Chief District Officer shall, within seven days from the date of detention, submit a report to the concerned District Court through the District Government Attorney. (2) When submitting a report pursuant to

sub-section (1), the accused or offender in detention shall also be produced before the District Court. (3) The Chief District Officer shall send a copy of the report submitted to the District Court pursuant to sub-section (1) to the Ministry. 14.

Jurisdiction of Court: (1) Upon receipt of a report pursuant to Section 13 for permission to extradite, the District Court may inquire into the following matters relating to whether the fugitive accused or offender may be extradited or not:- (a) Whether the requesting State has requested extradition of the fugitive accused or offender by completing the procedure or specifying the details or annexing the documents required to be specified or annexed pursuant to Sections 7 and 8; (b) Whether the warrant issued by the requesting State for the arrest of the fugitive accused or offender has been issued for the arrest of that same person; (c) Whether the fugitive accused or offender may be extradited pursuant to Section 3; (d) Whether the fugitive accused or offender is connected with an extraditable offense pursuant to Section 4; (e) Whether the fugitive accused or offender may be refused extradition pursuant to Section 5; (f) Whether the fugitive accused or offender may be extradited in accordance with the request of the requesting State. (2) Notwithstanding anything contained in sub-section (1), the District Court may hear the statement of such accused or offender and examine additional evidence relating to the offense before making an order on whether the fugitive accused or offender may be extradited or not. (3) If, upon inquiry under sub-section (1) or (2) and from the details, documents and evidence submitted by the requesting State, it appears that the fugitive accused or offender may be extradited under this Act, the District Court shall order the extradition. (4) When making an order pursuant to sub-section (3), if the fugitive accused or offender is in detention, the Court shall order that such fugitive accused or offender be kept in detention for a maximum period of forty-five days until the extradition proceedings are completed. (5) If, from the details, documents and evidence submitted by the requesting State under this Act, it does not appear that the fugitive accused or offender may be extradited, the concerned District Court shall order that such accused or offender cannot be extradited. (6) When making an order pursuant to sub-section (5), if the fugitive accused or offender is in detention, the Court shall also order his or her release from detention. (7) The District Court shall give information of the order given under this section regarding whether the fugitive accused or offender may be extradited or not to the concerned Chief District Officer through the concerned District Government Attorney. (8) The Chief District Officer shall immediately give information of the order received pursuant to sub-section (7) to the Ministry. 15.

Extradition to be carried out: (1) Upon receipt of information of the order that the fugitive accused or offender may be extradited pursuant to sub-section (8) of Section 14, the Ministry shall, within three days of receipt of such information, inform the requesting State thereof through diplomatic channels and arrange for the extradition of such fugitive accused or offender within thirty days. (2) When arranging extradition pursuant to sub-section (1), the Ministry shall determine the place, date and time for extradition of the fugitive accused or offender and give information thereof to the requesting State. (3) If, due to any reason, the fugitive accused or offender cannot be extradited at the place, date and time notified pursuant to sub-section (2), the Ministry shall immediately determine another date, time and place for extradition and inform the requesting State thereof. 16. **Information to be given that Extradition cannot be made:** (1) Upon receipt of information of the order that the fugitive accused or offender cannot be extradited pursuant to sub-section (8) of Section 14, the Ministry shall, within three days, inform the requesting State through diplomatic channels of the same substance. (2) If extradition cannot be made on the ground that the fugitive accused or offender is a Nepali citizen, the Ministry shall inform the requesting State through diplomatic channels that proceedings shall be instituted against such accused or offender in accordance with law. 17. **Proceedings to be instituted in accordance with law:** (1) Notwithstanding anything contained in prevailing law, if a fugitive accused or offender cannot be extradited pursuant to sub-section (5) of Section 14 or sub-section (2) of Section 16, and

if the offense in respect of which extradition was requested is also considered an offense under the law of Nepal, the Ministry shall institute proceedings against such accused in accordance with law. (2) Notwithstanding anything contained in prevailing law, if proceedings are to be instituted against a fugitive accused pursuant to sub-section (1), the concerned District Government Attorney shall file a case before a court or other competent body. (3) When instituting proceedings against a fugitive offender pursuant to sub-section (1), if such offender has already been convicted by a court or other competent body of the requesting State, the sentence shall be executed in accordance with prevailing law. (4) The Ministry shall inform the requesting State of the judgment rendered and sentence imposed by the court or other competent body in respect of the fugitive accused or offender under this section. 18.

Release from Detention if not taken over: If the requesting State does not take over the accused or offender kept in detention by order of the District Court pursuant to sub-section (4) of Section 14 for the purpose of taking charge within thirty days from the date on which the Government of Nepal gives notice for taking charge, the Ministry shall release such fugitive accused or offender from detention, unless the court has otherwise ordered. 19. If request for extradition received from more than one State: If more than one State requests extradition in respect of the same fugitive accused or offender, and if the District Court has ordered that extradition may be made pursuant to sub-section (3) of Section 14, the Government of Nepal may extradite such accused or offender to the State that made the request first. 20. Making a Request to a Foreign State for Extradition: (1) If a person accused of or found guilty of an offense within Nepal goes and resides in any area within the jurisdiction of a foreign State, or is in transit through that State while proceeding to a third country, the Ministry shall make a request to the relevant foreign State through diplomatic channels for the extradition of such fugitive accused or offender. (2) Notwithstanding anything contained in sub-section (1), if there is a likelihood that the fugitive accused or offender will abscond if not immediately arrested and taken into control, the Ministry may directly request the foreign State for the immediate arrest and taking into control of such fugitive accused or offender. (3) When making a request pursuant to sub-section (2), evidence making the fugitive accused prima facie appear as accused, and in the case of an offender, the judgment rendered by a court or other competent body shall also be annexed. (4) If the fugitive accused or offender is arrested by the relevant foreign State on the basis of evidence and judgment pursuant to sub-section (3), the Ministry shall, within seven days from the date of receipt of information of the arrest, request the relevant State through diplomatic channels as soon as possible for the extradition of such fugitive accused or offender. (5) When making a request for extradition pursuant to sub-section (1), the details and documents required to be specified and annexed pursuant to Section 8 shall be specified and annexed. 21.

Special Provisions applicable to Extradition: (1) Notwithstanding anything contained elsewhere in this Act, a fugitive accused or offender shall not be charged or punished for any other offense except for instituting proceedings in respect of the offense specified at the time of making the request for extradition. (2) Notwithstanding anything contained in sub-section (1), if it becomes necessary to institute proceedings also in respect of another minor offense related to the offense specified at the time of making the request for extradition, the requesting State may institute proceedings against such accused or offender with the consent of the Government of Nepal. 22. Property related to Offense to be returned: (1) When extraditing a fugitive accused or offender, the Government of Nepal may return to the requesting State the property related to the offense taken into control at the time of arrest of such accused or offender in Nepal, and other property derived therefrom. Provided that property in respect of which any other person's right, claim or any other kind of liability appears to subsist shall not be returned. (2) In the case of immovable property related to the offense of a fugitive accused or offender extradited by the Government of Nepal to the requesting State, if the relevant competent court orders confiscation, proceedings for return of such property shall be initiated. (3) If

the property to be returned under this section is in any form other than cash, it shall be sold at the prevailing market price and returned in cash. Provided that property that is to be submitted as corpus delicti in relation to the offense, or that the requesting State requests to be returned in kind, shall be returned in kind. 23. Requesting State to bear Expenses: (1) The expenses incurred in relation to extradition shall be borne by the requesting State. (2) Notwithstanding anything contained in sub-section (1), the expenses incurred in relation to judicial proceedings shall not be borne by the requesting State. 24. Proceedings against Accused or Offender extradited to Nepal: (1) A fugitive accused or offender extradited from a foreign State upon the request of the Government of Nepal shall be subject to proceedings in accordance with prevailing law. (2) The Government of Nepal shall inform such foreign State of the fact that proceedings have been instituted pursuant to sub-section (1). 25. Re-extradition not to be made: A fugitive accused or offender who has been extradited shall not be extradited to any other third State. 26.

Special Provision concerning Evidence: Notwithstanding anything contained in prevailing law, in respect of a case of an extraditable offense for which proceedings are instituted under this Act, the court may admit as evidence the proof, evidence and documents received from the requesting State. 27. Summary Procedure to be adopted: When conducting proceedings relating to the extradition of a fugitive accused or offender under this Act, the concerned court shall adopt the procedure in accordance with prevailing law relating to summary procedure. 28. Provision of Legal Aid: While the court conducts proceedings for the purpose of extradition of a fugitive accused or offender, if such accused or offender is unable to appoint a legal practitioner and desires one, the court may provide the facility of a legal practitioner without remuneration. 29. Power to remove Difficulties: If any difficulty arises in the implementation of this Act, the Government of Nepal may, by notification published in the Nepal Gazette, remove such difficulty. 30. Repeal and Saving: (1) The Extradition Act, 2045 is hereby repealed. (2) If extradition proceedings have already been initiated before the commencement of this Act, the procedure under the Extradition Act, 2045 shall be followed.